Rahul Maheshwari vs The State Nct Of Delhi on 12 March, 2024

Author: Anoop Kumar Mendiratta

Bench: Anoop Kumar Mendiratta

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 381/2023
   RAHUL MAHESHWARI ..... Petitione
   Through:

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   THE STATE NCT OF DELHI
   Through: Mr.Ajay Vikram Si
   with SI Rohit Cha
   Place.
   Ms.Charu Sachdeva
   Complainant Compa

   CORAM:
   HON'BLE MR. JUSTICE ANOOP KUMAR MENDIRAT
   ORDER

% 12.03.2024

1. Anticipatory bail preferred on behalf of the petitioner, Rahul Maheshwari was dismissed vide order dated 08.02.2023, since the petitioner allegedly forwarded numerous loan applications for grant of loan to various customers, by changing their photographs on the same documents. However, the application has been pending in view of directions issued in paras 15 to 23 which may be noticed for reference:

> "15. In the present case, the complainant has been granting loans based on the documents submitted to it, namely, the PAN card, bank account and ITRs. Since the complainant grants salary loans, the least bit of care and due diligence that is required by the complainant is to visit the employer of the loan applicant to verify as to whether the loan applicant was actually working with the employer and verify his credentials. Companies like the complainant are dealing with public money and cannot shrug off their responsibility by relying upon the documents submitted to them and blindly relying upon them. Had the complainant taken care and verified the documents from the employer like Ram Mahohar Lohia Hospital or Kalawati Hospital, they could have easily found out that the entire loan application was a sham and This is a digitally signed order.
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by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/03/2024 at 22:12:24 disbursal of such loan could have been prevented.

16. Mr. Sachdev, learned counsel for the complainant states that if two people know how to play fraud with the complainant company, the complainant company cannot be stated to be negligent. He also states that the complainant company has acted with all due diligence that was required at their part and is not at fault in the present case.

17. I am unable to agree with the same.

18. Had the complainant company taken the bare minimum effort of going to the employer and verifying the documents, such kind of frauds could have been prevented.

19. It is, at the end of the day, public money which the complainant company is dealing with and it cannot be so irresponsible.

20. In this view of the matter, while dismissing the application for grant of anticipatory bail, I am of the view that the complainant company and its offices have been negligent in performing their duties. The complainant company must take stock of the situation and conduct an inquiry with regard to the people who were irresponsible in discharging their duties and take action against them.

21. The ATR by the complainant must be filed in this petition for the perusal of the Court and for taking any other further / appropriate action, this Court may deem fit. Needful be done within 6 months.

22. The earlier status report submitted is taken on record.

23. The bail application is dismissed but list the matter for reporting compliance on 08.09.2023."

2. Investigation Report/Action Taken Report has been accordingly filed on behalf of the complainant/company whereby lapses in the process have been noticed and also preventive steps of process/policy amendments are stated to have been undertaken.

3. Admittedly, Bajaj Finance Ltd. (BFL) is a Non-Banking Finance Company, incorporated under the Companies Act, 1956 and registered with Reserve Bank of India ('RBI', for short). As per RBI Act, 1934, Reserve Bank of India is empowered to regulate and control the Non-Banking Finance Companies and exercise surveillance, supervise, inspect, lay down This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/03/2024 at 22:12:24 policies and regulate Non-Banking Finance Companies. Poor capital management and failure to

manage liabilities can cause failure or collapse of Non-Banking Finance Companies and put the funds of investors/customers in peril. Financial and operational discipline in disbursement of loan with correct identity of customers is imperative and for aforesaid purpose the loans needs to be made in the bank account of customers to ensure that the disbursement is only to a correctly identified entity/person.

4. Keeping in perspective objective and observations made vide order dated 08.02.2023, it shall be appropriate in case the aforesaid Investigation Report/Action Taken Report submitted by BFL is forwarded to RBI for appropriate action. Further, to prevent similar frauds in disbursement of loans, RBI may issue suitable guidelines to Non-Banking Finance Companies in business of disbursing loans.

Application is accordingly disposed of. Pending applications, if any, also stand disposed of.

A copy of this order be forwarded to RBI for compliance. Action Taken Report be forwarded to this Court within eight weeks.

ANOOP KUMAR MENDIRATTA, J MARCH 12, 2024/v This is a digitally signed order.

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